

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

May 12, 2008

The Governing Body of the City of Cheyenne convened in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of (CA) are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Mr. Segrave moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

(CA) MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON APRIL 28, 2008. Motion (per consent agenda) carried.

(CA) MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON MAY 5, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, Barb Dorr, City Treasurer, reviewed information available for a voucher payable to Teton Group and Alberta Anderson (\$40,000), purchase of storm water easement for Masonway Roadway Improvement Project. Upon inquiry regarding a voucher payable to Ziebart Consulting, LLC (\$6,405.46), consultant fees, brief discussion was held on reports received from Mr. Ziebart. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

"AN ORDINANCE AMENDING SECTION 2.29.020(A)(1), QUALIFICATIONS AND TRAINING, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHAPTER 2.29, COMMUNITY SERVICE OFFICERS, OF THE CHEYENNE CITY CODE, PERTAINING TO THE LOWERING OF MANDATORY AGE FOR CSO PARTICIPANTS." Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#3797)

"AN ORDINANCE AMENDING SECTION 3, ITEM A, USES BY RIGHT, AND ITEM H, DEVELOPMENT PERFORMANCE STANDARDS, OF ORDINANCE #3726 FOR CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST

CORNER OF THE INTERSECTION OF YELLOWSTONE RD. AND GARDENIA DRIVE).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3798)

“AN ORDINANCE AMENDING SECTION 4, USES BY RIGHT, SECTION 6, MAXIMUM BUILDING AND SITE COVERAGE, SECTION 8, SETBACKS, SECTION 9, DEVELOPMENT PERFORMANCE STANDARDS, SECTION 13, PARKING, SECTION 15, OWNERSHIP AND MAINTENANCE OF COMMON AREAS, OF ORDINANCE #3679 AND FURTHER AMENDING SECTION 12, SIGNAGE, WHICH WAS AMENDED WITH ORDINANCE #3748 FOR ALL OF STOREY ACRES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BLVD., BETWEEN SUNSET DRIVE AND TOWNSEND PLACE).” Mr. Segrave declared a conflict of interest (financial interest) and vacated Council Chambers. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Segrave returned to Chambers. (#3799)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED, AND SECTION 17.08.040, CHEYENNE CITY MAP, OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM MR-2 MEDIUM-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO P PUBLIC DISTRICT FOR ALL OF LOT 22, BLOCK 14, SADDLE RIDGE, CHEYENNE, WYOMING (LOCATED EAST OF WHITNEY RD., BETWEEN US HWY 30 AND LARAMIE ST.).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3800)

“AN ORDINANCE AMENDING SECTION 6.04.020, DEFINITIONS, AND AMENDING SECTION 6.04.030(B) AND (C), CAPTURE OF ANIMALS, OF CHAPTER 6.04, DEFINITIONS, ADMINISTRATION AND ENFORCEMENT; AMENDING SECTION 6.08.030, ANIMALS RUNNING AT LARGE PROHIBITED, AMENDING SECTION 6.08.040, OWNING OR KEEPING VICIOUS ANIMALS, REPEALING IN ITS ENTIRETY SECTION 6.08.080, ANIMALS IN ESTRUS, AND AMENDING SECTION 6.08.170(B) and (D) OWNING OR KEEPING A BITING ANIMAL PROHIBITED -PENALTY-SUMMARY IMPOUNDMENT-FEES, OF CHAPTER 6.08, ANIMAL CARE CONTROL REGULATIONS GENERALLY, AND AMENDING SECTION 6.20.020(A), ANIMAL IMPOUNDMENT, OF CHAPTER 6.20, IMPOUNDMENT, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” John Fafoutakis expressed concerns with enforcement and mandatory microchipping of animals. It was advised Animal Control officers currently enforcing the ordinance would continue to provide enforcement. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Collins moved to amend by substitute (dated 5/7/08), seconded by Ms. Broyles. It was noted the substitute amends language in Subsection 6.08.030(B)(3), to read as follows: “Third AND SUBSEQUENT offenseS, within a twelve (12) month period: MANDATORY COURT APPEARANCE, NOT LESS THAN A ONE HUNDRED DOLLAR (\$100.00) FINE AND UP TO A SEVEN HUNDRED FIFTY dollar (\$750.00) fine.” Discussion followed on purpose of the substitute, animals running at large, altering and microchipping of animals, court appearance and fines

for animals running at large. Motion to amend carried. Voting “yes” - all members of the governing body. Discussion continued on mandatory altering and microchipping and animal owner responsibility, when cited with a 2nd offense, to provide proof to Cheyenne Animal Control that the animal had been altered and microchipped. Upon inquiry, Police Chief Bob Fecht, Cheyenne Animal Shelter/Control board member, explained procedures that would be followed if an animal owner did not comply with altering and microchipping requirements. Further discussion followed regarding enforcement issues; Animal Control officers’ employment package and retaining quality officers; non-City employees enforcing City code animal laws, and mandatory court appearances for animal owners who violate certain ordinance provisions. Upon inquiry, City Attorney Claudia Angelos expressed her opinion that ordinance provisions involving microchipping would not apply to turtles, but would apply to animals with vertebrae. Main motion as amended carried. Voting “yes” - all members of the governing body with the exception of Ms. Case voting “no”. (#3801)

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTERS 17.04 INTRODUCTORY PROVISIONS AND DEFINITIONS, 17.60 NB NEIGHBORHOOD BUSINESS DISTRICT, 17.64 CB COMMUNITY BUSINESS DISTRICT, 17.68 CBD CENTRAL BUSINESS DISTRICT, 17.72 LI LIGHT INDUSTRIAL DISTRICT, 17.76 HI HEAVY INDUSTRIAL DISTRICT, 17.84 MUR MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT, 17.88 MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT, AND 17.128 SIGNS, OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE.” Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Comments followed concerning allowable vs. non-allowable temporary banners, and signage. Upon inquiry, Martin Matsen, Development Director, explained staff signage and banner enforcement procedures. Discussion followed regarding code enforcement issues, related discussion held at Public Services Committee, reasonable enforcement efforts, placement of advertising or promotional signs on private business property (internal) vs. within areas causing vehicle driver distraction or visual pollution, or within the public right-of-way. Mr. Matsen stated the proposed ordinance change is affiliated with enforcement issues and described “internal” signage allowances, zoning permit and site plan requirements, and communication with property owners relative to compliance. Motion carried. Voting “yes” - all members of the governing body with the exception of Mr. Laybourn voting “no”.

“AN ORDINANCE REPEALING IN ITS ENTIRETY CHAPTER 2.88, UNCLAIMED PROPERTY DISPOSITION, AND CREATING A NEW CHAPTER 2.88, DISPOSITION OF PROPERTY, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Mayor Spiker announced the item was being withdrawn from the agenda at the request of the sponsor and City staff.

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED BETWEEN WARREN AVENUE AND HOUSE AVENUE, BLOCK 139, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN WARREN AND HOUSE AVENUES, AND E. 24TH AND 25TH STREETS)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED BETWEEN PEBRICAN AVENUE AND SEYMOUR AVENUE, BLOCK 787, SOUTH CHEYENNE, CHEYENNE, WYOMING (LOCATED BETWEEN PEBRICAN AND SEYMOUR AVENUES

AND BETWEEN E. 1ST AND 2ND STREETS)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE VACATING THE 16-FOOT ALLEY SITUATED NORTHERLY AND WESTERLY OF LOT 5, BLOCK ONE, BRUTSMAN SUBDIVISION, CHEYENNE, WYOMING (LOCATED ALONG THE WESTERLY SIDE LOT LINE OF LOT 5, NORTH OF AND ADJACENT TO LARAMIE ST., WEST OF PIERCE AVE.)” – referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING SECTIONS 40.030 AND 40.035 IN ARTICLE IV - COMMUNITY FACILITY FEES OF THE CHEYENNE-LARAMIE COUNTY SUBDIVISION DEVELOPMENT REGULATIONS 2000” – referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE” – referred to Finance Committee (sponsor - Mr. Segrave).

“AN ORDINANCE APPROPRIATING MONEYS FOR THE CITY OF CHEYENNE, WY FOR THE VARIOUS PURPOSES IN CONDUCTING THE MUNICIPAL GOVERNMENT OF SAID CITY AND FIXING THE AMOUNT OF GENERAL AND SPECIAL TAXES AS PART OF THE REVENUE REQUIRED TO MEET THE SAID APPROPRIATION, ALL FOR THE FISCAL YEAR BEGINNING JULY 1, 2008, AND ENDING JUNE 30, 2009” – referred to Finance Committee (sponsor - Mr. Pierson).

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR MAVERIK SUBDIVISION, A REPLAT OF A PORTION OF TRACT 25 AND ALL OF TRACT 26, SUNNYSIDE ADDITION, SECOND FILING, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF E. PERSHING BLVD. AND N. COLLEGE DRIVE).” Albert Simpson, property owner, reviewed the status of the Maverik store project and subdivision development generally, and requested the final plat be approved without all of the design elements identified for Maverik as communication received from Maverik’s representative indicates the company does not intend to proceed with its development plans. He stated it was unknown at this time who the future user will be, or the type of development that may be proposed, for the subdivision. He commented that even though a postponement was requested at Public Services Committee, since that time he had determined he wished to move forward with final plat approval. Mr. Collins moved to adopt, seconded by Mr. Pierson. Concerns were expressed with Planning Commission last minute design (aesthetic) conditions being placed on the Maverik building project. Pursuant to Public Services Committee’s recommendation, Mr. Collins moved to postpone to July 14, 2008, seconded by Mr. Brown. John Fafoutakis stated his belief that Maverik should be included in the postponement decision, and Mr. Simpson spoke against postponement. Motion to postpone failed. Voting “no” – all members of the governing body. Information was provided on Planning Commission conditions and staff recommendations. Upon inquiry, T.J. Dlubac, Development Office, suggested a two week postponement to allow staff time to review implications of an unknown type of development for the site relative to the PlanCheyenne document. Mr. Simpson reviewed areas of design elements that had been agreed upon and expressed disagreement with any further design elements being required. Discussion included issues involving

design elements with Martin Matsen, Development Director, advising staff recommendations had not been presented at the last Public Services Committee meeting as a request to postpone had been received. He stated staff recommendations were pursuant to an anticipated agreement with Maverik and conversations with Mr. Simpson concerning plat requirements for property use, other than what was initially proposed by Maverik, had not been held. He explained possible circumstances of approving the plat without staff recommendations relative to Maverik potentially changing its position and moving forward with its project. Discussion continued regarding Planning Commission and staff recommendations, ownership issues being resolved with County Assessor, development agreement provision, and access easement and bus pull-out area relative to Maverik's project. Mr. Matsen reviewed the right-of-way issue pursuant to the proposed use by Maverik and anticipated development agreement, and site plan review and approval process. Comments continued on concerns with approving the final plat without knowing what will be built on the property and design elements; approval of other plats without knowledge of specific future use; site plan process assisting with design elements when a use is identified for the property, and lack of future governing body approval for any site plan submitted if the plat is approved. Mr. Segrave moved to amend to remove staff recommendations #1 through #3 and Planning Commission recommendations #1 and 2, seconded by Mr. Laybourn. Mr. Matsen advised if the plat is approved without staff recommendation #2, the property would be developed pursuant to a community business zone and criteria identified in PlanCheyenne would not be enforceable to be included in a site plan. Upon inquiry concerning when the City's proposed Unified Development Code (UDC) project would be presented, Mr. Matsen stated the consultant and staff anticipate submitting the UDC to the governing body this fall. Mr. Collins raised a point of information on whether staff recommendations and Planning Commission conditions had been approved at the last City Council meeting, or recommended by Public Services Committee. Following a 10 minute recess to research past action(s) on the resolution, Mayor Spiker reconvened the meeting at 7:28 p.m. Upon request, City Clerk Carol Intlekofer reviewed history of past actions and postponements, and clarified there had been no official vote taken on the staff recommendations at the last City Council meeting. She reviewed staff recommendations and Planning Commission conditions pursuant to resolution information contained in the Clerk's agenda file. Mr. Segrave advised since the recommendations and conditions had not previously been approved, he was withdrawing his motion to amend. Mr. Laybourn, as second to the motion, concurred. Discussion included other past developments and requirements for certain design and architectural elements, and economic and financial recession concerns related to current community business developments. In response to comment concerning design elements involving development of certain properties, developer Frank Cole stated he did not agree with comments made regarding a development involving his business property interest. Comments continued on communication by governing body members with the initial project developer to discuss issues of concern, purpose of Council Committee meetings, and quality community growth and design criteria. Motion carried. Voting "yes" - all members of the governing body with the exception of Ms. Broyles, Mr. Collins and Dr. Rinne voting "no". (#5031)

(CA) "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR STOREY ACRES, SECOND FILING, REFINEMENT B, A REPLAT OF LOTS 1, 5 AND 7, BLOCK 1, STOREY ACRES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BLVD., BETWEEN SUNSET DRIVE AND TOWNSEND PLACE)." Motion (per consent agenda) carried. (#5032)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT ~~AND SUBDIVISION PERMIT~~ FOR FLINT HILL DIVIDE, A REPLAT OF THE E½ OF TRACT 10, CHEYENNE IRRIGATED GARDENS, LARAMIE COUNTY, WYOMING (1807 GORDON ROAD).” Larry Perry, Terrestrial Surveying, agent for Mr. Flint, property owner, explained the purpose of the final plat is to divide the property for family residential purposes (additional structure). Mr. Collins moved to adopt, seconded by Ms. Broyles. Mr. Collins moved to amend by substitute, seconded by Ms. Broyles. It was noted a letter had been received by the County Planning and Development Director advising the original resolution submitted had been prepared on County letterhead and the Director has requested the document be amended to remove the letterhead emblems as well as correcting a clerical error by removing reference to the County’s subdivision permit in the entitlement. Motion to amend carried. Voting “yes” - all members of the governing body. Concerns were expressed with current Gordon Road right-of-way width relative to potential future annexation and roadway width to meet City requirements and provisions for an access easement. Upon inquiry, Abby Yenko, Laramie County Planning office, advised another plat will be before the governing body in the near future with an additional 10' right-of-way included, and stated the plat meets current MR-2 zoning district requirements. She reported the Cheyenne-Laramie County Zoning ordinance states “alleys and/or access easements should not be considered as primary access” and County staff’s interpretation is that it does not state “shall” and, therefore, it could not be required on the plat. She indicated the County Attorney had reviewed the matter and advised the easement should stand as is. Comments followed on right-of-way width and future development. Mr. Collins moved to require an additional 10' of right-of-way for Gordon Road, seconded by Mr. Brown. Mr. Perry explained if there is future development or annexation of the property, it would need to be re-platted to be compliant with urban standards and stated at the present time the owner is not interested in any other development other than allowing other family members to reside upon the property. He stated if the additional 10' right-of-way is required a revision to the plat will be needed, and suggested a note be placed on the plat reserving the 10' right-of-way area for future needs. Lisa Pafford, Assistant Director, City Development office, commented that there is no clear answer on what a road reservation is and what it means to different governing bodies and instead suggested dedication of the right-of-way be noted (on the plat) for future roadway use. John Fafoutakis spoke against the amendment and its effect on the property owner pursuant to their proposed family residential use. Discussion continued on meeting minimum City roadway width requirements for potential future annexation/development, and property access issues. Motion to amend carried. Voting “yes” - all members of the governing body. Upon inquiry, Ms. Pafford advised staff suggested 30' of suitable street access be provided pursuant to the City-County Zoning ordinance as it could become problematic for development in the future, and stated the property could be re-platted and re-configured at a future date. Main motion as twice amended carried. Voting “yes” - all members of the governing body. (#5033)

(CA) “A RESOLUTION APPROVING THE CITY OF CHEYENNE’S 2008 ANNUAL ACTION PLAN PREPARED BY THE CHEYENNE HOUSING AND COMMUNITY DEVELOPMENT OFFICE.” Motion (per consent agenda) carried. (#5034)

(CA) “A RESOLUTION APPROVING A PETITION FOR ENLARGEMENT OF THE BOUNDARIES OF THE SOUTH CHEYENNE WATER AND SEWER DISTRICT TO INCLUDE CERTAIN PROPERTY DESCRIBED AS ARP ELEMENTARY SCHOOL.” Motion (per consent agenda) carried. (#5035)

(CA) “A RESOLUTION APPROVING A PETITION FOR ENLARGEMENT OF THE BOUNDARIES OF THE SOUTH CHEYENNE WATER AND SEWER DISTRICT TO INCLUDE CERTAIN PROPERTY DESCRIBED AS ROSSMAN ELEMENTARY SCHOOL.” Motion (per consent agenda) carried. (#5036)

“A RESOLUTION APPROVING A PROJECT AGREEMENT FOR CHEYENNE’S GRANITE DAM SPILLWAY IMPROVEMENTS PROJECT AND AUTHORIZING THE MAYOR AND CITY CLERK TO SIGN SAID AGREEMENT (STATE WATER DEVELOPMENT GRANT).” Reporting for Finance Committee, Mr. Segrave moved to adopt, seconded by Mr. Valdez. Mr. Segrave moved to amend the 4th Whereas clause by inserting “/build” after the word “design,” seconded by Mr. Brown. Motion to amend carried. Voting “yes” - all members of the governing body. Main motion as amended carried. Voting “yes” - all members of the governing body. (#5037)

(CA) “A RESOLUTION AUTHORIZING THE EXPENDITURE OF UP TO \$153,000.00 FROM THE 1% SPECIFIC PURPOSE SALES AND USE TAX FUND TO FACILITATE ACQUISITION OF 3.5 ACRES OF PROPERTY AND ALL IMPROVEMENTS AND APPURTENANCES THEREON, LOCATED AT THE SOUTHWEST CORNER OF SNYDER AVENUE AND W. 10TH STREET, AND OWNED BY MRS. ELIZABETH BYRD, FOR THE DEVELOPMENT OF THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK (1% SPECIFIC PURPOSE SALES & USE TAX).” Motion (per consent agenda) carried. (#5038)

(CA) “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CENTER POINT SUBDIVISION, A REPLAT OF BLOCK 3, HOMESTEAD ADDITION, FIRST FILING, CHEYENNE, WYOMING (LOCATED SOUTHWEST OF AND ADJACENT TO HOMESTEAD AVE. AND EDA PL.)” – referred to Public Services Committee (sponsor - Mr. Collins).

(CA) “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR MARRIOTT SUBDIVISION, A REPLAT OF THE WEST 44.00-FEET OF LOT 7 AND THE EAST 22.50-FEET OF LOT 6, BLOCK 390, ORIGINAL CITY, CHEYENNE, WYOMING TO BE KNOWN AS MARRIOTT SUBDIVISION (LOCATED NORTH OF AND ADJACENT TO W. LINCOLNWAY, BETWEEN CAPITOL AND CAREY AVENUES)” – referred to Public Services Committee (sponsor - Mr. Collins).

(CA) “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYOMING STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS TRACT 2 AND 3, SKYLINE TRACTS; SYCAMORE ROAD AND SKYLINE DRIVE ADJACENT TO SAID TRACTS 2 AND 3, A SUBDIVISION OF SECTION 18, T.14N., R.66W OF THE 6TH P.M. LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO STOREY BLVD., EAST AND WEST OF SYCAMORE RD.)” – referred to Public Services Committee (sponsor - Mr. Collins).

(CA) “A RESOLUTION REQUIRING THE MAYOR TO DIRECT PARKS DIVISION TO RECLAIM AND REVEGETATE THE AREA OF LIONS PARK DISTURBED BY THE RECONSTRUCTION OF CENTRAL AVENUE” – referred to Finance Committee (sponsors - Ms. Case and Mr. Laybourn).

LEASES/CONTRACTS/LEGAL:

(CA) Contract between the City of Cheyenne, Laramie County Sheriff’s Department, and Laramie County for housing city prisoners at the Laramie County Detention Center. Motion (per consent agenda) carried. (#5241)

(CA) Memorandum of Understanding between the City of Cheyenne, Transit Program and Laramie County, to provide transportation services to Laramie County Community College, the City/County Health Department, and an area of Laramie County immediately adjacent to the City of Cheyenne. Motion (per consent agenda) carried. (#5242)

Proposal for professional services between the City of Cheyenne, Parks and Recreation Department, and S&S Builders LLC, for design of a pre-engineered steel building to be used as a maintenance building, at the Dutcher Field Baseball Complex (SLIB grant and general fund). Mr. Segrave moved to approve in an amount not to exceed \$56,955.00, seconded by Mr. Pierson. Discussion followed on the design/build process as allowed by a change in state statutes and this being the first City project to utilize the process; difference in bidding procedures from traditional design/bid/build process, and design elements contained in Plan Cheyenne relative to the building. Upon inquiry, Tim Grote, Parks Project Manager, advised the design process will include any elements required by the City and explained the structure rendering that had previously been submitted was a preliminary, not a final, design. Discussion continued on contractor-subcontractor relationship; comments in support and non-support of trying the design/build process, use of local contractors, and Plan Cheyenne elements. Mr. Grote advised the site plan is currently under review for the project and staff comments that are submitted, including building elements, will be addressed. He reported an RFP (request for proposals) was issued and discussed the design/build concept and proposed costs affiliated with design vs. construction phases. Comments continued on the design/build concept, fiscal accountability, inclusion of building design elements, accelerated schedule and anticipated cost savings by utilizing the new process, and lack of information on design/build procedures. Upon inquiry, Mr. Grote explained anticipated cost savings by using a design/build process to coordinate design and construction areas, and Rudy Apodaca, Purchasing Director, provided information on the design build team, which would include an architect retained by the contractor. Mr. Grote clarified he would be serving as the City project manager; provided information on the guaranteed maximum price that will be submitted by the contractor through the design process, and stated staff has determined for this first project under the design/build process, if the item were approved, a second agenda item would be submitted for governing body review relative to the contractor’s guaranteed maximum price to construct the building and affiliated design elements. Motion carried. Voting “yes” - all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”. (#5243)

(CA) Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the use of the parking lot leased from the United States Department of the Air Force, during the 2008 Cheyenne Frontier Days celebration – referred to Finance Committee.

(CA) Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1, to lease school buses from Laramie County School District No. 1 to provide transportation services during the 2008 Cheyenne Frontier Days celebration – referred to Finance Committee.

(CA) Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the use of buses leased by Laramie County School District No.1 to provide transportation services during the 2008 Cheyenne Frontier Days celebration – referred to Finance Committee.

(CA) Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned lands for parking, camping and other activities associated with the 2008 Cheyenne Frontier Days celebration – referred to Finance Committee.

(CA) Agreement between the City of Cheyenne and Bill G. Hibbler for professional legal services – referred to Finance Committee.

(CA) Professional Services Agreement between the City of Cheyenne, Fire and Rescue Department, and High Plains Information Systems for a Fire Records Management System. (Fire Act Grant, and 2003-2006 1% Sales Tax) – referred to Finance Committee.

(CA) Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1, to provide transportation services for Parks & Recreation Dept. “Rec Camp Program.” – referred to Finance Committee.

(CA) Agreement between the City of Cheyenne, Sanitation Department, and Waste Management Disposal Services of Colorado, Inc., for non-hazardous solid waste disposal (North Weld Landfill) – referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

(CA) Contract Modification No. 6 to Contract No. 4363 between the City of Cheyenne and Trihydro Corp., to plan and complete drilling of three additional monitoring wells at the Happy Jack Landfill – referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-28-08 for a contract between the City of Cheyenne and Knife River for the Missile Drive Overlay Project (2003-2006 1% Sales Tax). John Fafoutakis spoke in favor of concrete vs. asphalt for the project and commented on other road/street projects involving asphalt and limited road life; Frank Cole reviewed favorable asphalt overlay results involving his business

properties and spoke generally on asphalt vs. concrete maintenance issues; Victor Ciccone spoke in favor of spending additional funds to recycle the concrete and properly repair the roadway as it is a gateway entrance into the City, and Amber Ash stated it would be fiscally responsible to repair the road sections with concrete and not an asphalt overlay which will need to be replaced later. During comments and upon inquiry, City Engineer Ken Lewis confirmed the roadway is being reviewed by the Metropolitan Transportation Organization and at some future point it is hoped funding will be allocated to completely reconstruct the roadway, and provided information on current surface and sub-surface roadway conditions. Joe Stephenson, Knife River representative, advised the company has a crew ready to start the project and discussed project cost increases (i.e. fuel) since the firm submitted its bid and lack of an escalation clause in City bid documents. He cited his experience with past asphalt resurfacing projects and durability, and commented on issues affecting roadway life (i.e. water, weather and freeze/thaw effects). Mr. Segrave moved to approve in an amount not to exceed \$304,802.50, seconded by Mr. Brown. Mr. Segrave moved to postpone to May 27, 2008. Motion died due to lack of a second. Discussion followed. Upon inquiry, Mr. Lewis explained the past 1% sales and use tax ballot question approved by voters indicated the concrete street would be repaired and the proposed project will repair the roadway so it is serviceable until a full reconstruction can be accomplished, and advised any Portland cement concrete curbing that is sound will remain in place but if some curbs have deteriorated to where it is no longer sufficiently attached to the concrete pavement, they will be removed and the contractor will install asphalt concrete curbing. Mr. Stephenson advised Knife River has an asphalt curb machine. Upon inquiry, Jeff Fanning, Engineering Services Director, advised the concrete median under the Burlington Northern Railroad overpass does not have any bearing on the structural integrity of the roadway and there are no plans to do anything with the median. Mr. Lewis provided further information on current roadway conditions relative to deterioration and “movement” of concrete slabs and discussed aspects of the overlay project. Mr. Fanning explained visual site inspections conducted to determine concrete slab movement, and elements of a “crack and seat” treatment. Discussion continued on the last grind and overlay on Dell Range; interpretation of “concrete repair”; placing asphalt over concrete; completely re-doing the road; industry acceptance of asphalt over concrete; asphalt road life expectancy, and an overlay as the most cost-effective solution. Motion carried. Voting “yes” - all members of the governing body with Ms. Case and Mr. Laybourn voting “no”. (#5244)

(CA) Consideration of Bid #R-28-08 for furnishing one new full size, 1-ton, 4x4, regular cab truck with dump and chipper box combination for the Forestry Division (2007-2010 1% Sales Tax). Motion (per consent agenda) carried.

(CA) Consideration of Bid #R-31-08 for furnishing one new 5,000 gallon, two compartment above ground vaulted tank and fueling system from Kubat Equipment and Service, Denver, CO., for the Parks Dept. (SLIB Grant, and General funds) – referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

(CA) Authorizing the City of Cheyenne, Fleet Maintenance, to have Wyoming Machinery Co., repair Caterpillar Scraper, Model #621G, used at the Sanitary Landfill – referred to Finance Committee.

Announcement was made that due to the Memorial Day holiday on Monday, May 26, 2008, the regular meeting of the Governing Body will be held Tuesday, May 27, 2008 at 6:00 p.m. in City Council Chambers.

Announcement was made of a Public Hearing to be held May 27, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as a tract of land situated in a portion of the NW¼, Section 8, T.13N., R.66W., 6TH P.M., Laramie County, Wyoming (Located at the southeast quadrant of Fox Farm Rd. and Walterscheid Blvd. intersection).

Announcement was made of a Calcutta to be held Thursday, June 5, 2008 beginning at 7:00 p.m. at Uncle Charlie's Lounge, 6001 Yellowstone Road, in conjunction with the annual Uncle Charlie's "DONE" golf tournament (15% of proceeds to benefit the Cheyenne Boys and Girls Club).

OTHER CITY BUSINESS:

John Fafoutakis commented on the recent 1% Specific Purpose Sales Tax election relative to failure of Proposition #4 (new Recreation Center) and public participation procedures during meetings.

Victor Ciccone expressed his opinion on the condition of City streets and spoke in support of providing funding to repair streets in a proper manner in lieu of temporary fixes.

Mr. Laybourn commented on his concerns with preservation of historic properties within Ward I, noting the historic Governor's Mansion district; recent demolishing of certain properties, and Historic Preservation Board and Planning Dept. involvement. Mayor Spiker advised he had met with an individual concerning City Code requirements and possible re-location of certain structures to outside of City limits.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:25 p.m.

Submitted by,

Carol A. Intlekofer, CMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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